

HOUSE BILL 2528

By Lamberth

AN ACT to amend Tennessee Code Annotated, Title 62,
Chapter 35, relative to private security.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 62-35-103(a), is amended by deleting "This chapter does not apply to:" and substituting "The following persons are not required to obtain a license or registration, unless otherwise stated in this chapter:".

SECTION 2. Tennessee Code Annotated, Section 62-35-103(a), is amended by adding the following as a new subdivision:

() A reserve officer/deputy, part-time officer/deputy, or auxiliary officer/deputy who meets or exceeds all training requirements established in § 62-35-118, as required for the type of security services or location where the officer or deputy is providing services. An officer or deputy claiming this exemption from registration must complete biannual training equivalent to the refresher training requirements in § 62-35-122, as determined by the commissioner. If an officer or deputy claiming this exemption has not completed, as appropriate, either the training required by § 62-35-118 or the biannual refresher training required by § 62-35-122 in the immediately preceding two-year period, then the officer or deputy shall not provide security services under this exemption until the individual recompletes training that meets or exceeds all training requirements established in § 62-35-118, as required for the type of security services or location where the officer or deputy is providing services.

SECTION 3. Tennessee Code Annotated, Section 62-35-117(2), is amended by deleting "resident" and substituting "qualified".

SECTION 4. Tennessee Code Annotated, Section 62-35-117(4)(B), is amended by adding the following as a new subdivision:

() Stalking;

SECTION 5. Tennessee Code Annotated, Section 62-35-117, is amended by adding the following as new subdivisions:

() Not be on any abuse registry maintained in this state or any other state; an individual who is on an abuse registry in this state or another state is disqualified from being able to obtain any license or registration listed in this chapter for as long as the individual is on such registry;

() Not have an order of protection, bond condition, conviction, or any other action that prohibits the individual from possessing any firearm; an individual who has an order of protection, bond condition, conviction, or any other action that prohibits the individual from possessing a firearm is disqualified from holding an armed security guard/officer registration for as long as the individual is subject to such prohibition;

SECTION 6. Tennessee Code Annotated, Section 62-35-118(d), is amended by deleting subdivisions (3) and (4) and substituting:

(3) The requirements of subsections (a) and (b) do not apply to an applicant for registration who is a sworn peace officer and certified by the peace officer standards and training commission.

(4) The requirements of subsection (a) do not apply to an applicant for registration who is a state or local correctional officer or jailer; provided, that the state officer has successfully completed the appropriate basic training required by § 41-1-116 and is current on all annual refresher courses required by § 41-1-116, and the local officer or jailer has successfully completed comparable basic training and annual in-service training courses.

SECTION 7. Tennessee Code Annotated, Section 62-35-120, is amended by deleting subsection (b) and substituting:

(b)

(1)

(A) A security guard/officer shall provide written notice to the commissioner or the commissioner's designee and to the licensee or the proprietary security organization that employs the security guard/officer if the security guard/officer is subject to any arrest or citation for any offense listed in § 62-35-117.

(B) Such written notice must be provided within ten (10) days of the arrest or citation, whichever occurs first, and must include a copy of any charging documents related to the arrest or citation.

(2)

(A) A security guard/officer shall provide written notice to the commissioner or the commissioner's designee and to the licensee or the proprietary security organization that employs the security guard/officer if the security guard/officer is convicted of any offense listed in § 62-35-117.

(B) Such written notice must be provided within ten (10) days of the conviction and must include a copy of the conviction and any other relevant court orders related to the conviction and sentencing.

(3)

(A) An armed security guard/officer shall provide written notice to the commissioner or the commissioner's designee and to the licensee or the proprietary security organization that employs the security guard/officer of any arrest, conviction, order of protection, bond

conditions, or any other circumstance that impacts the armed security guard's/officer's ability to carry a firearm.

(B) Such written notice must be provided within ten (10) days of any circumstance listed in subdivision (b)(3)(A) and must include a copy of documents related to the conditions that restrict the armed security guard's/officer's ability to carry a firearm.

SECTION 8. Tennessee Code Annotated, Section 62-35-122, is amended by adding the following as a new subsection:

(h)

(1) The requirements of subsection (e) do not apply to an unarmed security guard/officer who has had at least two (2) hours of training determined by the commissioner to be equivalent to that required by subsection (e) in the year prior to filing the application.

(2) The requirements of subsection (d) do not apply to an armed security guard/officer who has had at least four (4) hours of classroom training and marksmanship training determined by the commissioner to be equivalent to that required by subsection (d) in the year prior to filing the application.

(3) The requirements of subsections (d) and (e) do not apply to a sworn peace officer who is actively certified by the peace officer standards and training commission.

(4) The requirements of subsections (d) and (e) do not apply to a state or local correctional officer or jailer; provided, that the state officer has successfully completed the appropriate basic training required by § 41-1-116 and is current on all annual refresher courses required by § 41-1-116, and the local officer or jailer

has successfully completed comparable basic training and annual in-service training courses.

SECTION 9. Tennessee Code Annotated, Section 62-35-123, is amended by adding the following as a new subsection:

(b) A proprietary security organization registration or renewal expires two (2) years from date of issuance.

SECTION 10. Tennessee Code Annotated, Section 62-35-124(b), is amended by deleting the subsection and substituting:

(b)

(1)

(A) A licensee or proprietary security organization shall provide written notice to the commissioner or the commissioner's designee of any arrest or citation for any offense listed in § 62-35-117 of:

(i) The licensee or its qualifying agent or manager; or

(ii) Any person employed as a security guard/officer by the licensee or the proprietary security organization.

(B) Such written notice must be provided within ten (10) days of the arrest or citation, whichever occurs first, and must include a copy of any charging documents related to the arrest or citation.

(2)

(A) A licensee or proprietary security organization shall provide written notice to the commissioner or the commissioner's designee of any conviction for any offense listed in § 62-35-117 of:

(i) The licensee or its qualifying agent or manager; or

(ii) Any person employed as a security guard/officer by the licensee or the proprietary security organization.

(B) Such written notice must be provided within ten (10) days of the conviction and must include a copy of the conviction and any other relevant court orders related to the conviction and sentencing.

(3)

(A) A licensee or proprietary security organization shall provide written notice to the commissioner or the commissioner's designee of any arrest, conviction, order of protection, bond conditions, or any other circumstance that impacts the ability of an armed security guard/officer who is employed by the licensee or proprietary security organization to carry a firearm.

(B) Such written notice must be provided within ten (10) days of any circumstance listed in subdivision (b)(3)(A) and must include a copy of documents related to the conditions that restrict the armed security guard's/officer's ability to carry a firearm.

SECTION 11. Tennessee Code Annotated, Section 62-35-131, is amended by deleting the section and substituting:

(a) A municipality, county, or other political subdivision of this state shall not require a licensee or registrant to obtain any authorization, permit, or license, or to pay any other fee or post a bond, to engage in any business or activity regulated under this chapter.

(b) Notwithstanding subsection (a), a municipality, county, or other political subdivision of this state may impose:

(1) A bona fide business tax; and

(2) Regulations upon any person who furnishes street patrol services, including a requirement that the person register with a designated agency.

SECTION 12. Tennessee Code Annotated, Section 62-35-133, is amended by deleting the section.

SECTION 13. Tennessee Code Annotated, Section 62-35-134, is amended by deleting subdivision (c)(2).

SECTION 14. Tennessee Code Annotated, Section 62-35-134, is amended by deleting subdivision (c)(5) and substituting:

(5) Make any statement, innuendo, or insinuation, or take any action, that would reasonably cause another person to believe that the security guard/officer functions as a law enforcement officer or other government official; or

SECTION 15. Tennessee Code Annotated, Section 62-35-141, is amended by deleting subdivision (b)(2) and substituting:

(2) Notwithstanding subdivision (b)(1), a law enforcement officer may wear the law enforcement officer's jurisdiction's uniform, if the jurisdiction has authorized its officers to do so.

SECTION 16. Tennessee Code Annotated, Section 62-35-141, is amended by deleting subsections (a) and (c).

SECTION 17. Tennessee Code Annotated, Title 62, Chapter 35, is amended by adding the following as a new section:

62-35-137. Review of training.

An individual may submit training or continuing education to be reviewed and approved by the commissioner for any requirements listed in this chapter. The commissioner may set a reasonable fee for the review of the training or continuing education courses.

SECTION 18. The heading in this act is for reference purposes only and does not constitute a part of the law enacted by this act. However, the Tennessee Code Commission is requested to include the heading in any compilation or publication containing this act.

SECTION 19. This act takes effect upon becoming a law, the public welfare requiring it.